

21STCV16330 21STCV16330

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-08-11

Motion: DEFENDANT FITNESS INTERNATIONAL, LLC's SPECIAL MOTION TO STRIKE UNDER CALIFORNIA'S ANTI-SLAPP STATUTE

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Case Number: 21STCV16330 Hearing Date: August 11, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

BERTA

MIRANO, an individual; GUILLERMO MUNOZ MIRANO, an individual,

Plaintiffs,

vs.

FITNESS INTERNATIONAL, LLC, a California Limited Liability

Company; LA FITNESS, a business entity of unknown form; PACIFIC INVESTORS

GROUP, a California corporation; and DOES 1 TO 20,

Defendants.

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CASE

NO.: 21STCV16330

[TENTATIVE] ORDER RE: DEFENDANT

FITNESS INTERNATIONAL, LLC's SPECIAL

MOTION TO STRIKE UNDER CALIFORNIA'S ANTI-SLAPP STATUTE

Dept. 733

8:30 a.m.

August 11, 2026

I.

INTRODUCTION

This case arises

from Plaintiff Berta Mirano ("Berta") getting injured while using a

treadmill at an LA Fitness Club,

when the treadmill suddenly accelerated after five minutes of use.

On April 30, 2021,

Plaintiffs Berta and Guillermo Munoz Mirano ("Guillermo") filed a complaint against Defendants Fitness International, LLC ("Fitness "), LA Fitness ("LA Fitness") and Pacific Investors Group ("Pacific") ("Defendants"), alleging causes of action for (1) Negligence, (2) Premises Liability, and (3) Loss of

Consortium.

On

September 28, 2023, the Honorable Anne Hwang granted Fitness International's motion for summary judgment on the grounds that there existed an executed waiver that served as a complete defense.

On

September 11, 2025, the Court of Appeal reversed on the grounds that there exists a triable issue of fact as to the authenticity of Berta's electronic signature on the waiver. The Court also found that there existed an issue of fact as to whether LA Fitness was reasonably diligent in monitoring and maintaining the treadmill.

On

May 12, 2026, the Court granted Plaintiffs' request for leave to amend the complaint in light of the Court of Appeal's reversal.

On

May 18, 2026, Plaintiffs filed the operative first amended complaint ("FAC"), alleging causes of action for (1) Negligence (2) Gross Negligence (3) Premises Liability (4) Products Liability (Strict and/or Negligent) (5) Negligent Hiring, Training, Supervision, and Retention (6) Elder Abuse / Neglect (7) Unfair Competition (Bus. & Prof. Code § 17200 et seq.) and (8) Loss of Consortium.

On

July 1, 2026, Fitness filed the instant Special Motion to Strike pursuant to California's Anti-SLAPP statute ("anti-SLAPP motion").

On

July 29, 2026, Plaintiffs filed an opposition.

On

August 4, 2026, Fitness filed a reply.

II.

LEGAL STANDARD

"If a defendant brings a special

motion under the anti-SLAPP statute [Code of Civil Procedure Section 425.16] to strike a cause of action, the trial court evaluates that motion using a two-step process: The first examines the nature of the conduct that underlies the plaintiff's allegations to determine whether the conduct is protected by section 425.16; the second assesses the merits of the plaintiff's claim. [Citation]" (Laker v. Board of Trustees of California State University (2019) 32 Cal.App.5th 745, 759.)

"The defendant's first-step burden is to identify the activity each challenged claim rests on and demonstrate that that activity is protected by the anti-SLAPP statute. A 'claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted.' [Citation.] To determine whether a claim arises from protected activity, courts must 'consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.' [Citation.] Courts then must evaluate whether the defendant has shown any of these actions fall within one or more of the four categories of 'act[s]' protected by the anti-SLAPP statute. [Citations.]" (Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 884 [italics in original].)

"In the first step of the analysis, the trial court determines whether the cause of action 'arises from' an "'act in furtherance of a person's right of petition or free speech under the United States or California Constitution in connection with a public issue.'" [Citation] The first step of the anti-SLAPP analysis 'turns on two subsidiary questions: (1) What conduct does the challenged cause of action 'arise[] from'; and (2) is that conduct 'protected activity' under the anti-SLAPP statute?' [Citation]" (Laker, supra, 32 Cal.App.5th. at p.760.)

"The Supreme Court has clarified that 'arising from' means 'based on.' [Citation] This element of the first step of the anti-SLAPP analysis is sometimes referred to as the 'nexus' requirement. [Citation] Conduct constitutes 'protected activity,' if it falls within one of the categories set out in section 425.16, subdivision (e). Section 425.16, subdivision (e), in turn, applies to (1) 'any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law'; (2) 'in connection with an issue under consideration or review by a legislative, executive, or judicial body, or

any other official proceeding authorized by law'; (3) 'in a place open to the public or a public forum in connection with an issue of public interest'; or (4) 'any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.' [Citation] The defendant bringing the anti-SLAPP motion to strike must make a prima facie showing that the allegations that form the basis of the plaintiff's claims arise from conduct that falls under one of these categories. [Citation]" (Ibid.)

"If the defendant prevails in this step of the analysis, the trial court must then assess the merits of the plaintiff's claim. The Supreme Court has described this second step of the SLAPP analysis as a 'summary-judgment-like procedure.' [Citation.] The plaintiff carries the burden of demonstrating that its claim has 'at least 'minimal merit.'" [Citation.] If the plaintiff is unable to demonstrate that his or her claim has at least minimal merit, then the trial court should deem the cause of action a SLAPP and should strike it. [Citation.]" (Ibid.)

At this "second stage of an anti-SLAPP hearing, the court may consider affidavits, declarations, and their equivalents if it is reasonably possible the proffered evidence set out in those statements will be admissible at trial. Conversely, if the evidence relied upon cannot be admitted at trial, because it is categorically barred or undisputed factual circumstances show inadmissibility, the court may not consider it in the face of an objection. If an evidentiary objection is made, the plaintiff may attempt to cure the asserted defect or demonstrate the defect is curable." (Sweetwater Union High School Dist. v. Gilbane Building Co. (2019) 6 Cal.5th 931, 949.)

The trial court properly considers the evidentiary submissions of both the plaintiff and the defendant, but it may not weigh the credibility or comparative strength of the evidence and must instead simply determine whether the plaintiff's evidence would, if believed by the trier of fact, be sufficient to result in a judgment for plaintiff. (McGarry v. Univ. of San Diego (2007) 154 Cal.App.4th 97, 108-09.) The court "accept[s] as true the evidence favorable to the plaintiff [citation] and evaluate[s] the defendant's evidence only to determine if it has defeated that submitted by the plaintiff as a matter of law." [Citations.]" (Flatley v. Mauro (2006) 39 Cal.4th 299, 326.) Further, whether the evidence is in conflict, in the context of a motion to strike under the anti-SLAPP statute, if

the plaintiff has presented a sufficient pleading and has presented evidence showing that a prima facie case will be established at trial, the plaintiff is entitled to proceed. (Moore v. Shaw (2004) 116 Cal.App.4th 182, 193.) Only a minimal showing of merit is required. (Robinzine v. Vicory (2006) 143 Cal.App.4th 1416, 1421.)

III.

JUDICIAL NOTICE

Plaintiffs request for the Court to take judicial notice of the following pursuant to Evidence Code section 452(d):

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The opinion of the California Court of Appeal, Second Appellate District, in *Mirano v. Fitness International, LLC*, Court of Appeal Case No. B333302, filed September 11, 2025

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The remittitur issued by the California Court of Appeal in Court of Appeal Case No. B333302 on December 3, 2025

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The Los Angeles Superior Court's May 12, 2026, ruling granting Plaintiffs' motion for leave to file the First Amended Complaint in Case No. 21STCV16330

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Plaintiffs' First Amended Complaint filed May 18, 2026, in Los Angeles Superior Court Case No. 21STCV16330

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Plaintiffs' Notice of Motion and Motion for Leave to File First Amended Complaint filed January 26, 2026

-

Defendant Fitness International, LLC's opposition to Plaintiffs' motion for leave to file the First Amended Complaint, filed March 2, 2026

-

Plaintiffs' reply in support of their motion for leave
to file the First Amended Complaint

-

Defendant Fitness International, LLC's filed Notice of
Motion and Special Motion to Strike Portions of Plaintiffs' First Amended
Complaint under Code of Civil Procedure section 425.16

The Court grants Plaintiffs' request.

IV.

EVIDENTIARY OBJECTIONS

Plaintiffs object
to the certain portions of the Declaration of John K. Park submitted in

support of the anti-SLAPP motion.
The Court overrules each of Plaintiffs' objections.

V.

DISCUSSION

Fitness filed the
instant anti-SLAPP motion as to paragraphs 16, 32, 67, 74, 86, 87 in the

FAC.

1. First

Prong: Protected Activity

"To prevail on an anti-SLAPP motion, the movant must first
make 'a threshold showing the challenged cause of action' arises from an act in
furtherance of the right of petition or free speech in connection with a public
issue." (Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180,
192.) "[T]he focus is on determining what 'the defendant's activity [is]
that gives rise to his or her asserted liability—and whether that activity
constitutes protected speech or petitioning.' [Citation.]" (Park v.
Board of Trustees of California State University (2017) 2 Cal.5th 1057,
1063.)

In determining whether an entire cause of action should be stricken from a complaint: “[T]he statutory phrase ‘cause of action ... arising from’ means simply that the defendant’s act underlying the plaintiff’s cause of action must itself have been an act in furtherance of the right of petition or free speech.” (City of Cotati v. Cashman (2002) 29 Cal.4th 69, 78.) “In the anti-SLAPP context, the critical point is whether the plaintiff’s cause of action itself was based on an act in furtherance of the defendant’s right of petition or free speech.” (Ibid.) “In terms of whether relief is sought based on allegations of both protected and unprotected activity, “the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by statute, the second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated ... If not, the claim is stricken.” (Baral v. Schnitt (2016) 1 Cal.5th 376, 396.)

“The only means specified in section 425.16 by which a moving defendant can satisfy that [‘arising from’] requirement is to demonstrate that the defendant’s conduct by which plaintiff claims to have been injured falls within one of the four categories described in subdivision (e)” [Citation.]” (Ibid.) Code of Civil Procedure Section 425.16 subdivision (e), in pertinent part, defines protected acts to include “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16(e)(1-4).)

Pursuant to Baral, “[a]t the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them.” (Baral, supra, 1 Cal. 5th at p, 396.)

On the first step of the anti-SLAPP analysis, a defendant may introduce extrinsic evidence to meet its initial

burden in demonstrating whether the disputed claims arise from protected activity. (Gunn v. Drage (9th Cir. 2023) 65 F.4th 1109, 1118 [“Under California’s anti-SLAPP statute, defendants are entitled to rely on their own proffered evidence to show that they have met the prima facie burden of demonstrating protected activity. Indeed, California’s anti-SLAPP statute requires courts to consider evidence outside the pleadings at both steps of the analysis.”]; Navellier v. Sletten (2002) 29 Cal.4th 82 [examining declarations and other documents at first prong to determine whether each of the acts “about which plaintiffs complain falls squarely within the plain language of the anti-SLAPP statute”].) The defendant does not have to solely rely on the pleadings, as “[s]uch conclusive deference would be difficult to reconcile with the statutory admonition that courts must look beyond the pleadings to consider any party evidentiary submissions as well.” (Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 887; see Stewart v. Rolling Stone LLC (2010) 181 Cal.App.4th 664 “[W]e do not evaluate the first prong of the anti-SLAPP test solely through the lens of a plaintiff’s cause of action.”].)

Here,

Fitness contends that Plaintiffs seek damages against it for engaging in the activities of litigation, particularly engaging in written discovery, deposition discovery and the preparation and filing of motions such as the summary judgment motion that was filed by Fitness in this case. Fitness contends that paragraphs 16, 32, 67, 74, 86, 87 allege that Fitness obtained signatures from plaintiff, Berta Mirano, in discovery and used these signature samples to create or alter documents submitted to the Court.

The

allegations at issue provide that “[d]uring this litigation, Defendant and its agents obtained approximately forty (40) specimen signatures from Plaintiffs in discovery, including approximately twenty (20) signature exemplars from 2019, the year Plaintiffs joined the Facility. . . . Plaintiffs never actually signed as such waivers and then presented and relied on those fabricated or altered documents as genuine waivers in support of a motion for summary judgment.” (FAC ¶ 16.) “Defendant’s use of Plaintiffs’ discovery signature specimens to fabricate or alter purported waivers, and its reliance on those documents to attempt to deprive an injured senior of her day in court[.]” (Id. ¶ 32.) “In addition, Defendants, through their officers, directors, managing agents, and authorized representatives, acted with recklessness, oppression, fraud, and malice by, among other things, using Plaintiffs’ signature specimens obtained in discovery to create or alter purported waivers and releases that Berta never

knowingly signed, and then relying on those documents in an attempt to bar her claims and deprive an injured elder of her day in court.” (Id. ¶ 67.)

“Defendants’ acts and practices were fraudulent in that they misled reasonable consumers by . . . inducing Berta to sign in a small tablet box without disclosing that Defendants would later treat that signature as a broad waiver of liability for Defendants’ own negligence and statutory violations; and fabricating or altering purported waivers using Plaintiffs’ signature specimens and then presenting those documents as genuine in court to defeat an injured elder’s claims.” (Id. ¶ 74.) “During this litigation, Defendants and their agents obtained numerous signature specimens from Plaintiffs and, on information and belief, used those specimens to create or alter purported “waiver” or “release” forms that Berta never knowingly signed as such waivers. Defendants then presented and relied upon those fabricated or altered documents as genuine waivers in support of a motion for summary judgment, in an effort to bar the claims of an injured elder and to deprive her of her day in court.” (Id. ¶ 86.)

To reiterate, subdivision (e)(1) of the Anti-SLAPP statute protects “any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law.” (Code Civ. Proc., § 425.16, subd. (e)(1).) There is no denying that Fitness’ activities regarding obtaining discovery and reliance on such discovery in the motion for summary judgment in this case is protected activity. These allegations relate to Fitness’ activities of filing a motion for summary judgment based upon information obtained through pretrial discovery. (Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1056, 39 Cal.Rptr.3d 516, 128 P.3d 713 [anti-SLAPP statute protects “communicative conduct such as the filing, funding, and prosecution of a civil action,” including such acts when “committed by attorneys in representing clients in litigation”].)

Thus, Fitness’ statements made in connection with this case, specifically engaging in pretrial discovery, consequently obtaining Plaintiffs’ “signature specimen,” and subsequently relying on such signatures in Fitness’ motion for summary judgment in this action, are clearly “made before a . . . legislative . . . proceeding, or any other official proceeding authorized by law.” (Code Civ. Proc., § 425.16, subd. (e)(1).) Any statements or conduct in litigation conduct constitute petitioning activity within the meaning of the anti-SLAPP statute. (Briggs v. Eden Council for Home & Opportunity (1999) 19 Cal. 4th 1106, 1116

["Under the plain terms of the statute it is the context or setting itself that makes the issue a public issue: all that matters is that the First Amendment activity take place in an official proceeding or be made in connection with an issue being reviewed by an official proceeding."].)

However, the analysis does not end here.

a.

Mixed Causes of Action

While the Court finds that the alleged conduct relating to Fitness' litigation activities to

be

protected activity, Plaintiffs allege other conduct not subject to the instant anti-SLAPP motion, such as Fitness' failure to adopt and enforce safety protocols for gym equipment, including the subject treadmill that malfunctioned while Berta was using it. (See FAC ¶¶ 18-24.)

However, "a plaintiff [can] not deprive a defendant of anti-SLAPP protection by bringing a complaint based upon both protected and unprotected conduct." (Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309, 319.) Thus, the Court must determine whether such allegations are merely "incidental" to each cause of action or "could be the sole an adequate basis for liability under the cause[s] of action[.]" (Haight Ashbury Free Clinics, Inc. v. Happening House Ventures (2010) 184 Cal.App.4th 1539, 1551; Peregrine Funding, Inc. v. Sheppard Mullin Richter & Hampton LLP (2005) 133 Cal.App.4th 658, 672 [first prong of SLAPP analysis met where the allegations of loss resulting from protected activity were not merely incidental or collateral to unprotected activity]; see also Fox Searchlight Pictures, Inc. v. Paladino (2001) 89 Cal.App.4th 294, 308 ["a plaintiff cannot frustrate the purposes of the SLAPP statute through a pleading tactic of combining allegations of protected and nonprotected activity under the label of one 'cause of action' "].)

"In the anti-SLAPP context, the critical point is whether the plaintiff's cause of action itself was based on an act in

furtherance of the defendant's right of petition or free speech.” (Cotati, supra, 29 Cal.4th at p. 78.) “A defendant meets this burden by demonstrating that the act underlying the plaintiff's cause fits one of the categories spelled out in section 425.16, subdivision (e)” (Ibid.) In terms of whether relief is sought based on allegations of both protected and unprotected activity, “the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by statute, the second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated ... If not, the claim is stricken.” (Baral, supra, 1 Cal.5th at p. 396.)

Thus, “[i]t does not matter that other unprotected acts may also have been alleged within what has been labeled a single cause of action; these are disregarded at this stage. So long as a ‘court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached; with respect to these claims.” (Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1010 (quoting Baral, supra, 1 Cal.5th at p. 396); Laker, supra, 32 Cal.App.5th. at p. 772 [“When relief is sought based on more than one allegation, some of which arise from activity protected by the anti-SLAPP statute and some of which do not, the allegations that arise from unprotected activity are ‘disregarded.’”].)

And relief is being sought based on the allegations related to Fitness’ protected activity. Specifically, related to Plaintiffs’ elder abuse cause of action, Plaintiffs are seeking to impose liability related to Fitness’ use of “Plaintiffs’ signature specimens obtained in discovery to create or alter purported waivers and releases that Berta never knowingly signed, and then relying on those documents in an attempt to bar her claims and deprive an injured elder of her day in court.” (FAC ¶ 67; see Optional Capital, Inc., supra, 18 Cal.App.5th at p. 111 [“The ‘gravamen is defined by the acts on which liability is based, not some philosophical thrust or legal essence of the cause of action’ ”].) Particularly, Plaintiffs rely on this allegation to support that Fitness “acted with recklessness, oppression, fraud, and malice” in order to obtain exemplary and punitive damages. (FAC ¶ 86.)

Further, to support Plaintiffs’ UCL claim and demonstrate that Fitness’ acts and practices were “fraudulent,” Plaintiffs allege that Fitness “fabricat[ed] or alter[ed]

purported waivers using Plaintiffs' signature specimens and then present[ed] those documents as genuine in court to defeat an injured elder's claims." (FAC ¶ 74.)

Therefore, relief is explicitly being sought based on allegations of protected activity, specifically Fitness engaging in discovery and relying on such discovery to move for summary judgment. This activity is what forms the basis of Plaintiffs' injury of her, "an injured senior" being "deprive[d]. . . of her day in court." (FAC ¶ 32, 67, 86.) The protected activity is, at least partly, the injury-producing conduct. (*Area 51 Prods., Inc. v. City of Alameda* (2018) 20 Cal.App.5th 581, 599 ["Under the rule in *Baral*, we must disregard the unprotected conduct and focus on whether any nonincidental protected conduct is charged, even just in part."].)

To the extent that

Plaintiffs allege other unprotected conduct to support Plaintiffs' claims, such acts are disregarded at this stage. (*Sandoval v. Pali Inst., Inc.*

(2025) 113 Cal.App.5th 616, 628 ["If through this analysis it becomes clear a cause of action is a mixed cause of action, meaning "one that rests on allegations of multiple acts, some of which constitute protected activity and some of which do not," we disregard the unprotected acts and reach the second step of the anti-SLAPP analysis with respect to the claims arising from protected activity."]; *Park*, supra, 2 Cal.5th at p. 1060 ["a claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted."].)

Because Fitness has sufficiently presented how the challenged allegations, concerning Fitness' litigation activities related to its motion for summary judgment in this case, supply a basis for Plaintiffs' relief, Fitness has sufficiently satisfied its burden under the first prong.

2. Second

Prong: Minimal Merit

For the second prong of the anti-SLAPP analysis, Plaintiff bears the burden of establishing a probability of succeeding on the merits. (See *Kyle v. Carmon* (1999) 71 Cal.App.4th 901, 907.) However, Plaintiff is "not required 'to prove the specified claim to the trial court,' rather, so as to not deprive the plaintiff of a jury trial, the appropriate inquiry is

whether the plaintiff has stated and substantiated a legally sufficient claim.” (Whitehall v. County of San Bernardino (2017) 17 Cal.App.5th 352, 364.) “Put another way, the plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.” [Citation.] (Navellier v. Sletten (2002) 29 Cal. 4th 82, 88–89.)

“In opposing an anti-SLAPP motion, the plaintiff cannot rely on the allegations of the complaint, but must produce evidence that would be admissible at trial. [Citation.] Thus, declarations may not be based upon ‘information and belief’ [Citation] and documents submitted without the proper foundation will not be considered.” (HMS Capital, Inc. v. Lawyers Title Co. (2004) 118 Cal.App.4th 204, 212.) The complaint, even if verified, is insufficient to carry the plaintiff’s shifted burden. (Roberts v. Los Angeles County Bar Association (2003) 105 Cal.App.4th 604, 614; Karnazes v. Ares (2016) 244 Cal.App.4th 344, 354 [“pleadings do not constitute evidence”].)

“The court considers the pleadings and evidence submitted by both sides, but does not weigh credibility or compare the weight of the evidence. Rather, the court’s responsibility is to accept as true the evidence favorable to the plaintiff [citation] and evaluate the defendant’s evidence only to determine if it has defeated that submitted by the plaintiff as a matter of law. [Citation.] The trial court merely determines whether a prima facie showing has been made that would warrant the claim going forward.” (HMS Capital, Inc., supra, 118 Cal.App.4th at p. 212.)

a.

Litigation Privilege

“‘The usual formulation is that the [litigation] privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that [has] some connection or logical relation to the action.’” [Citation.] The privilege “is not limited to statements made during a trial or other proceedings, but may extend to steps taken prior thereto, or afterwards.” [Citation.]” (Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1241.) “[T]he litigation privilege was founded on defamation actions, and

has been applied primarily to provide absolute immunity from tort liability for communications with 'some relation' to judicial proceedings." (Feldman v. 1100 Park Lane Associates (2008) 160 Cal.App.4th 1467, 1494.)

Moreover, the Supreme Court noted that it had previously "directed that section 47(b) be applied broadly to bar tort actions based on privileged communications, excepting only the tort of malicious prosecution." (Hagberg v. California Fed. Bank (2004) 32 Cal.4th 350, 358.) "The privilege applies to communications relative to the defense of an action as well as those relative to its filing and prosecution." (Cabral v. Martins (2009) 177 Cal.App.4th 471, 485.)

The threshold issue in determining whether the litigation privilege applies is whether the defendant's conduct was communicative or noncommunicative. (Herterich v. Peltner (2018) 20 Cal. App. 5th 1132, 1139.) The "[p]leadings and process in a case are generally viewed as privileged communications." (Navellier v. Sletten (2003) 106 Cal.App.4th 763, 770.) "The privilege extends to any publication required or permitted by law in the course of a judicial proceeding to achieve the objects of the litigation, even if the publication occurs outside the courtroom in the absence of a court function or the court's officers. The privilege also applies to noncommunicative acts that are necessarily related to privileged communicative conduct." (Herterich, supra, 20 Cal.App.5th at p. 1139 (internal citations omitted).)

"The principal purpose of Civil Code section 47, subdivision (b) is to afford litigants and witnesses the utmost freedom of access to the courts without fear of being harassed subsequently by derivative tort actions. The litigation privilege also promotes the effectiveness of judicial proceedings by encouraging attorneys to zealously protect their clients' interests without being concerned with subsequent derivative actions. Additionally, the privilege gives finality to judgments and avoids unending litigation." (Ibid. (internal citations omitted).)

Here, the challenged allegations are entirely premised on Fitness participating in litigation activities of requesting and obtaining pretrial discovery and later using discovery produced as evidence to support Fitness' motion for summary judgment in this case. (See Optional Capital, Inc., supra, 18 Cal.App.5th at p. 118 ["the

litigation privilege applies because the communicative conduct at issue—as established by the pleadings and documents submitted in connection with motions—was made in judicial or quasi-judicial proceedings (i.e., the state court action, the federal forfeiture action, and the private mediation in the state court action) by attorneys [] to achieve the object of the proceedings and had some connection or logical relation to the action.”.) The communicative acts underlying the challenged allegations, filing a motion for summary judgment after obtaining the specimen signatures in discovery, were clearly made to further Fitness’ litigation efforts in this action. (Rothman v. Jackson (1996) 49 Cal.App.4th 1134, 1146 [“the communicative act—be it a document filed with the court, a letter between counsel or an oral statement—must function as a necessary or useful step in the litigation process and must serve its purposes.”].) Therefore, the litigation privilege applies. (See Bergstein v. Stroock & Stroock & Lavan LLP (2015) 236 Cal.App.4th 793, 814 [“A plaintiff cannot establish a probability of prevailing if the litigation privilege precludes the defendant’s liability on the claim.”].)

Nonetheless, even if the Court were to address the second prong on the merits, Plaintiffs failed to submit any competent and admissible evidence to support the probability of prevailing on the challenged claim or the truth of the allegations at issue, and thus Plaintiff failed to establish its burden on step two of the anti-SLAPP analysis. (See Wisner v. Dignity Health (2022) 85 Cal. App. 5th 35, 43 [“the plaintiff cannot meet this burden by relying on the allegations of the complaint. The plaintiff must submit admissible evidence.”].)

VI.

CONCLUSION

Thus, Fitness’ anti-SLAPP motion is GRANTED. The Court strikes paragraphs 16, 32, 67,

74, 86, 87 from the FAC. When a court grants an anti-SLAPP motion, the unsuccessful party is not entitled to leave to amend. (Simmons v. Allstate Ins. Co. (2001) 92 Cal.App.4th 1068, 1074 [“[W]e believe that granting leave to amend the complaint after the court finds the defendant had established its prima facie case would be jamming a procedural square peg into a statutory round hole.”].)

Dated this 11th
day of August 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court